TILFURY ZIMBABWE (PRIVATE) LIMITED

And

FUNGAI BANGIDZA

Versus

THE MINING COMMISSIONER P. KUNAKA [N.O]

And

DAMOFALLS INESTMENTS (PRIVATE) LIMITED

And

MINISTER OF MINES AND MINING DEVELOPMENT

IN THE HIGH COURT OF ZIMBABWE
NDLOVU J
BULAWAYO 20 JUNE & 20 AUGUST 2025

Court Application

Adv. G Madzoka with Mr V Mutatu, for the applicants
Miss M M Takaedza, for the 1st & 3rd respondents
Adv. T. L. Mapuranga, for the 2nd respondent

NDLOVU J: This is a court application for review in terms of section 4(1) of the Administrative Justice Act *[Chapter 10:28],* hereinafter referred to as the (AJA), wherein the Applicants allege that the 1st Respondent, an administrative authority, failed to comply with its statutory duties as enumerated in s 3 of the AJA. The Applicants are seeking, in terms of s 4 (2) (a), the setting aside of the 1st Respondent's decision to cancel certificates of registration for the following mining titles, namely;

Glen Arroch 80 - Registration number 29584;

Glen Arroch 81 - Registration number 29585;

Glen Arroch 83 — Registration number 298005;

Glen Arroch 82 - Registration number 2980.

1. The decision mentioned above was purportedly made by the 1st Respondent in terms of Section 50 of the Mines and Minerals Act [Chapter 21:05], [the Mines Act] and therefore constitutes an administrative act. It is this administrative decision that the Applicants seek to impugn as being incongruent with the Act, as well as the Respondent's duty to act lawfully and fairly. The Applicants argue that the 1st Respondent's decision is so manifestly egregious and unlawful to the extent that it constitutes a palpable nullity.

BACKGROUND

2. The first applicant is TILFURY ZIMBABWE (PRIVATE) LIMITED, a company duly incorporated in terms of the laws of Zimbabwe, represented by Fungai Bangidza, one of its directors. The second applicant is FUNGAI BANGIDZA in his personal capacity.

3. The first respondent is P. Kunaka, N.O., cited as nominee officio in his capacity as Mining Commissioner. The second respondent is DAMOFALLS INVESTMENTS (PRIVATE) LIMITED, a company duly incorporated in terms of the laws of Zimbabwe. The third respondent is the MINISTER OF MINES AND MINING Development, cited in his capacity as the Minister charged with the administration of the Mines and Minerals Act *[Chapter 21:05]* (the Mines and Minerals Act).

4. The Applicants have been involved in a long-running dispute with the second respondent relating to the boundaries of the aforementioned gold mining claims, which are situated on land owned by the second Respondent, a land developer. The following Court Records refer;

HC 1707/18,

HC 7244/19.

HC 2866/20,

SC 37/20,

Applicants' case

5. It was the applicants' case that after these cases, in which the applicants were largely successful the dispute landed before the first respondent MR P KUNAKA, who is directly related to MR A KUNAKA, who is alleged to be a manager, shareholder and financial controller of the 2nd Respondent, leading to the subsequent cancellation of the above mining claims.
6. When the first Respondent assumed jurisdiction over the matter and sought to adjudicate the disagreement between the parties, the Applicants objected in writing to the palpable conflict of interest that existed in the first Respondent determining a matter wherein his relation had a direct financial interest. On June 6, 2023, without holding a hearing on the issue or calling on the 2nd Respondent to address the apparent conflict of interest, the 1st Respondent wrote a letter to the applicants summarily rejecting the objection they had raised and proceeded with adjudicating the matter. The applicants were aggrieved by the manner and procedure that resulted in the cancellation and approached this court in terms of the AJA, seeking that the proceedings be reviewed and the cancellation be set aside.

7. The 1st Respondent does not deny his familial connection to the 2nd Respondent; neither does he positively refute the alleged conflict of interest.

8. According to the applicants, no reasonable person could have derived any comfort from the letter dated 6 June 2023, in the circumstances of this matter. The applicants argued that the first respondent violated the rule against bias, as the close familial relationship between the second respondent's A. Kunaka and himself unequivocally disqualified him from presiding over and adjudicating any dispute involving the second respondent.

9. In addition to this, the applicants averred that the irregularity of the first respondent's adjudication was further compounded by the patently unlawful and void decision to act in clear breach of s 50 of the Mines and Minerals Act which imposes mandatory obligation on the first respondent to give not less than 30 days of notice before cancelling a certificate of registration of mining title. The first respondent, by letter dated 13 October 2023 and stamped 26 October 2023, notified the applicants of his intention to cancel their certificates of registration, effective 31 October 2023. The applicants further stated that, ex facie, the communication above specified a notice period of only 18 days, instead of the statutorily stipulated 30 days. To add

to the unlawful, unilateral decision by the first respondent, the letter of intention to cancel the certificates of registration was only served upon the applicants' legal practitioners on 4 November 2023, after the purported cancellation had already taken place. The applicants argued that non-compliance with the procedural requirements for cancellation, as set out in s 50 of the Mines and Minerals Act, renders the resultant decision void, as stipulated in the case of *BMG Mining (Pvt) Ltd vs Mining Commissioner and Otrs* (2011) (1) ZLR 74 (H).

10. It was the applicants' case that the first respondent is an administrative authority. An administrative authority ought to act lawfully, reasonably and fairly as required by s 3 of the AJA. The parties involved must be given adequate notice of the nature of the proposed action and a reasonable opportunity to make representations. Failure to pay credence to this statutory duty by any administrative authority renders the attendant administrative decision anomalous at law. The applicants argued that the first respondent acted *ultra vires* s3 (2) (a) of the AJA.

11. Further, the unlawfulness, unreasonableness and unfairness of the administrative action taken by the first respondent was intensified by the fact that at the time he authored the said letter, he ought to have been aware that the second respondent's Exclusive Prospecting Order number 216/2004 ("EPO") application over the same land had been rejected by the Minister of Mines and Mining Development through a letter dated 21 July 2023. According to the applicants, this was a clear indication that the first respondent was manifestly irrational and did not give due consideration to the issues at hand, as he ought to have enquired into the validity of the Exclusive Prospecting Order number 216/2004 before cancelling the Applicants' certificates.

12. The applicants further argued that such circumstances render any intended appeal a *brutum fulmen*, as such an appeal could only have been dealt with by the third respondent before the date of cancellation. In the applicant's view, the late delivery of the notice to cancel was intentionally done to render any potential appeal stillborn. It was therefore the applicant's contention that the first respondent did not act lawfully. To that extent, the administrative decision by the first respondent adversely affects their rights, interests, and legitimate expectations of being subjected to lawful, reasonable, and fair administrative action and decision-making. Furthermore, even if the applicants were to pursue the appeal, it would be

fundamentally flawed, as a manifest illegality precipitated it. The applicants referred the court to the case of *Mugwebi vs Seed Co. Ltd and Anor* (2000) (1) ZLR 93 (SC), wherein the appellate court invalidated disciplinary proceedings that stemmed from an illegal suspension.

13. The applicants averred that they have found themselves uncertain about the status of their respective registration certificates and the legality of their mining operations. For the circumstance to return to regularity, the first respondent's unlawful decision ought to be set aside in terms of s 4 (2) (a) of the AJA.

First respondent's case

14. The first respondent stated that no decision to cancel the applicants' certificates of registration had been made, and that all he did was issue a notice of intention to cancel them due to non-compliance with the Mines and Minerals Act at the time of registration. According to the first respondent, the notice was issued after a survey visit on 17 July 2023, to which the applicants had been invited; however, they chose not to attend. The first respondent further argued that the applicants have consistently employed delay tactics whenever attempts were made to resolve the dispute. The first respondent went on to insist that the applicants have a right to appeal his decision to the third respondent, stating that the appeal has been filed with the third respondent. He urged the applicants to pursue that appeal, as this application for review was filed prematurely without exhausting all internal remedies.

15. The first respondent also contends that it is not true that the issue landed in his office erroneously, as he assumed jurisdiction after the Supreme Court held that the High Court did not have jurisdiction and the matter ought to be dealt with by the Ministry of Mines. To his knowledge, he had the jurisdiction in his capacity as the Mining Commissioner. He also argued that not only did the applicants never express their reservations about his adjudication of the matter, but he also did not act in any unlawful or biased manner. He argued that, in fact, the late service of the notice to cancel the certificates, which was served after the proposed cancellation date, is sufficient proof that the cancellation never took place on 31 October 2023.

16. He urged this court to decline jurisdiction in terms of s 7 of the AJA, which provides that a court may, if it finds itself qualified, decline jurisdiction and refer parties to a matter to exhaust all available internal remedies. According to the first respondent, the applicants' rights had not been taken away, as they can still appeal to the third respondent. The first respondent prayed for the dismissal of the matter with costs.

Second respondent's case

17. The second respondent argued that the first respondent acted lawfully, reasonably, and in a fair manner, as he initially gave adequate notice of the investigative meeting scheduled for 17 July 2023, which the applicants did not attend. It argued that the matter was placed correctly before the first respondent. While it was admitted that the first respondent is the brother of the second respondent's A. Kunaka, who serves as the Finance and Administration Manager of the second respondent, A. Kunaka is not a shareholder. He derives no special benefits from the second respondent, like any other employee. It was further argued that allegations of bias were unfounded, as the first respondent had addressed these allegations. In any case, the applicants had acquiesced to his jurisdiction by not appearing at the meeting scheduled for 17 July 2023.

18. The second respondent further stated that it was common cause that the first respondent did not provide sufficient notice in terms of Section 50(2) of the Mines and Minerals Act; however, this non-compliance cannot result in the setting aside of the cancellation order. It was further argued that the conduct of the first respondent cannot have been qualified as unfair and unreasonable, and the first respondent himself may not even be aware of the reasons why the notice of cancellation was not served on time. The second respondent urged the applicants to proceed with the appeal, as they were only alleging bias concerning the first respondent and not the third respondent, before whom the appeal is. The second respondent contended that the third respondent would give them ample time to make representations; therefore, they should be allowed to do so. A dismissal of the matter was prayed for.

Third respondent's case

19. The third respondent in his opposing papers confirmed that the applicants had indeed filed an appeal before him, and this appeal was still pending. He averred that both parties would be allowed

to make representations before him before he decides as to whether to authorise the first respondent to proceed with the proposed cancellation or to withdraw the notice.

PRELIMINARY POINTS.

The 2nd respondent took two preliminary points, namely, review under AJA and jurisdiction.

a. Review in terms of AJA.

20. It was the argument by the second respondent that Bias is not a ground of review in terms of the AJA but in terms of the High Court Act. As a result, the applicants are out of time as they filed this application in April 2024, complaining about events that occurred in November 2023. Their choice of AJA was therefore a deliberate act designed to shield the applicants from the requirement that they seek condonation first, as they were outside the eight-week window period within which one can apply for review under the High Court Act. The second respondent further argued that one can file a review under the High Court Act and go on to rely on AJA because the High Court Rules, [Rule 62], one can go beyond the traditional three grounds of review, but the reverse is not allowed.

21. The Applicants countered this respondent's argument and stated that bias is accommodated in fairness. Section 3 of AJA pertains to an administrative authority acting reasonably in its decision-making. Section 4 of AJA is mounted on a failure to comply with Section 3. In other words, the inability to be fair, or the allegation of being biased. Seeking recusal, therefore, is a vehicle through which one uses in his or her quest to protect his or her right to fairness. As a result, bias can be raised under AJA. I agree.

Marx Mupungu v Minister of Justice, Legal and Parliamentary Affairs & Otrs CCZ 07/21 @ p 10.

Munyaradzi Mawadze v S SC 46/24 @ para- 15

The point *in limine* is duly dismissed.

b. Jurisdiction.

22. The second respondent argued that this dispute had been before the courts before, and the courts deferred the dispute to the Mining Commissioner. According to the second respondent, the same issues arise in this matter, and the matter is pending before the Minister. This court can only entertain this dispute if the domestic mechanisms have failed to resolve the matter. The applicants had several domestic options and could only approach this court after their challenge had failed. To that end, the applicants must wait for the Minister's decision, so argued the second respondent.

23. Section 4[1] of AJA directs the aggrieved party to the High Court. The Mines and Minerals Act does not oust the High Court's jurisdiction. The High Court has inherent jurisdiction. Those three factors put this preliminary point to rest. It is duly dismissed

ISSUES FOR DETERMINATION

1. Whether or not the first respondent acted in a biased manner?
2. Whether or not the decision of the first respondent is null and void?

THE LAW

24. The High Court has inherent jurisdiction over all civil matters in terms of section 13 of the High Court Act *[Chapter 7:06]*. It is further empowered to review decisions made by inferior courts, tribunals, and administrative authorities, as per Section 26 of the same Act. Section 27 of the court lists the grounds of review which may invoke this court's jurisdiction, and section 27 (1) (b) provides the following;

> "(1) Subject to this Act and any other law, the grounds on which any proceedings or decision may be brought on review before the High Court shall be
>
> (b) interest in the cause, bias, malice or corruption on the part of the person presiding over the court or tribunal concerned or on the part of the authority concerned, as the case may be…"

25. How an administrative authority exercises its authority is prescribed in section 3 of the AJA as follows;

> "(1) An administrative authority which has the responsibility or power to take any administrative action which may affect the rights, interests, or legitimate expectations of any person shall-
>
> (a) act lawfully, reasonably and in a fair manner; and

(b) act within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to take the action by the person concerned; and

(c) where it has taken the action, supply written reasons therefor within the relevant period specified by law or, if there is no such specified period, within a reasonable period after being requested to supply reasons by the person concerned.

(2) In order for an administrative action to be taken in a fair manner as required by paragraph (a) of subsection (1), an administrative authority shall give a person referred to in subsection (1)-

(a) adequate notice of the nature and purpose of the proposed action; and

(b) a reasonable opportunity to make adequate representations; and

(c) adequate notice of any right of review or appeal where applicable."

26. Further to that, the same statute provides for methods of relief to a party that an administrative decision in section 4 may aggrieve. It provides that;

"Relief against administrative authorities

(1) Subject to this Act and any other law, any person who is aggrieved by the failure of an administrative authority to comply with section three may apply to the High Court for relief.

(2) Upon an application being made to it in terms of subsection (1), the High Court may, as may be appropriate-

(a) confirm or set aside the decision concerned;"

27. When determining whether there is bias or likelihood of bias in decision making, the test for bias has been stipulated in *Masedza & Ors v Magistrate, Rusape & Anor* 1998 (1) ZLR 36 (H) where the court quoted with approval the case of *Metropolitan Properties v Lannon & Ors* [1969] 1 KB 577 where the court stated:

> *"In considering whether there was a real likelihood of bias, the court does not look at the mind of the justice...or whoever it is who sits in a judicial capacity. It does not look to see if there was a real likelihood that he would, or did, in fact favour one side at the expense of the other. The court looks at the impression which would be given to other people. Even if he was as unbiased as could be, nevertheless, if right-minded persons would think that, in the circumstances, there was a real likelihood of bias on his part, then he should not sit."* ***(own emphasis)***

APPLICATION OF THE LAW

Whether or not the first respondent acted in a biased manner?

28. The rule against bias, also known as the rule against a judge being a party to their cause, is a fundamental principle of natural justice that ensures administrative decisions are made fairly and

impartially. This is crucial in that it promotes public confidence in administrative authorities and the justice system. It requires that justice not only be done, but also be seen to be done. In the present matter, the applicants raised an issue with the first respondent adjudicating over their dispute with the second respondent, as he is a brother of the second respondent's A Kunaka. The first respondent's response was only to the effect that he was going to adjudicate the matter impartially. However, he went on to issue a notice of cancellation of the applicants' certificates of registration of mining titles without affording them a chance to be heard. The first respondent stated in its opposing papers that the decision to cancel was made following a meeting held on 17 July 2023. The second respondent confirmed this. However, what is apparent from both the first and second respondents' averments is that the applicants had requested that this meeting be rescheduled to 28 July 2023 as their legal practitioner was unavailable on the proposed date. There was no mention of whether the meeting was moved to the date requested by the applicants, but the respondents state that the applicants chose not to attend despite being given ample notice. It is, however, apparent that the meeting was conducted in the applicants' absence despite their request for a later date. Given the concerns already raised by the applicants, I do not see the wisdom in the first respondent's actions.

29. The first respondent did not just end there; he went on to issue a notice of intention to cancel the certificates on 13 October 2023, stating that he intended to revoke the certificates on 30 October 2023. This was not only *ultra vires* s50 (2) and (3) of the Mines and Minerals Act, but also contrary to the principle of natural justice, the *audi alteram partem* rule, in that the applicants were only served with the notice days after the intended date of cancellation. The applicants were denied their right to be heard. This, as correctly pointed out by the applicants, rendered any intended appeal futile. The first respondents' actions exhibited signs of bias, and the applicants' concerns cannot be faulted. As explained by the learned court in the *Metropolitan Properties v Lannon and Otrs* case *(supra),* there is no requirement for this court to determine whether the applicants' actions are *ex facie* biased; however, the court must consider how an officious bystander would view the situation. In this case, I believe that any right-minded person would have concerns about the first respondent adjudicating over the dispute involving the second respondent, given the familial relations with one of its senior members, which were not disputed. The first

respondent's assurance that he would or he acted fairly cannot be sufficient to displace the applicants' apprehension.

30. For these reasons, I find that the first respondent's actions were contrary to what was required of him under section 3 of the AJA.

Is the decision of the first respondent null and void?

31. The decision made by the first respondent, who not only contravened the statutory provision in section 50 (2) enjoining him to give a notice of intention of cancellation of 30 days to the applicants, also exhibited signs of bias. The consequences of this are that the decision he made cannot be allowed to stand. This was explained in the case of *BMG Mining (Private) Limited v Mining Commissioner and Otrs (supra),* wherein the court emphasised that where an administrative authority has failed to adhere to the mandatory procedural requirements for cancellation as set out in s 50 of the Mines and Minerals Act, the attendant decision is a nullity.

32. While the respondents urged the applicants to pursue the appeal, which has already been filed before the third respondent, I agree with the applicants that the decision that may follow is likely to be to their prejudice. This is because the second respondent's arguments and opposing papers indicated that the certificates of registration had already been cancelled. In contrast, the first and third respondents were adamant that the cancellation had not yet been effected. Furthermore, the third respondent has not offered the applicants any consolation, as he has completely ignored the issue that the first respondent ought not to have handled the dispute in the first place, given his relationship to the second respondent's A. Kunaka. I do not fault the applicants for losing faith in the administrative authorities. I also found it quite appalling for the first respondent to state that the very fact that the applicants were served with the notice late is enough to show that the cancellation has not taken place, because clearly, the first respondent shows a failure to comprehend simple statutorily prescribed procedural steps that ought to be taken by a person in his position.

33. I do not see the wisdom in pursuing the appeal before the third respondent, as this court is vested with the power to review the actions of the first respondent. While the second respondent

attempted to persuade this court to refer this matter to the third respondent, citing Section 7 of the AJA, which states the following;

> "Without limitation to its discretion, the High Court **may** decline to entertain an application made under section 4 if the applicant is entitled to seek relief under any law, whether by way of appeal, review or otherwise, and the High Court considers that any such remedy should first be exhausted". **(own emphasis)**

34. I would have agreed with the second respondent in this regard had the provision been written in peremptory language; however, it is clear that the High Court has discretion to either deal with the matter or refer it back for internal remedies to be exhausted. I do not think the matter will be properly adjudicated by the third respondent, given the history of the dispute.

DISPOSITION

35. I find that the first respondent acted in a manner that was contrary to what was required of him at law. Therefore, his decision to cancel the applicants' certificates of registration is *ultra vires* the law. It is null and void. It cannot be allowed to stand. As a result, I issue the following order;

ORDER

It is ordered that;

1. The application for review is hereby granted.
2. The first respondent's decision rendered under section 50 of the Mines and Minerals Act *[Chapter 21:05]* issuing notice of cancellation of the first applicant's certificates of mining title in respect of Glen Arroch 80-Reg. No. 29584; Glen Arroch 81-Reg. No. 29585; Glen Arroch 82- Reg. No. 2980; Glen Arroch 83- Reg. No. 298005 is hereby set aside.
3. The first, second and third respondents, jointly and severally, one paying, the others to be absolved, shall pay the applicants' costs of suit.

NDLOVU J.

Mutatu & Partners. Applicants' Legal Practitioners.

Civil Division of the AG's Office. 1st & 3rd Respondent's Legal Practitioners.

Wilmot & Bennett, 2nd Respondent's Legal Practitioners.